F I L E D
Superior Court of California
County of San Francisco
APR 22 2025
CLERK OF THE COURT
BY: Deputy Clerk
KIMBERLY SEPTIEN

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO PLAINTIFF VS. SUBHI ABDELHALIM et al DEFENDANT	Case Number: CGC-21-594102 SUBMISSIONS BY PLAINTIFF RECEIVED BY THE COURT

On March 31st, the Court received Attachment A. This document titled: Plaintiff's Proposed Jury Instructions was submitted to the Court by plaintiff via email. These proposed jury instructions were resubmitted to the Court on April 21, 2025, for the Court's consideration.

On April 19, 2025, the Court received Attachment B via email: Plaintiff's proposed verdict form.

KIMBERLY SEPTIEN Clerk

Attachment A

Franciscus Dylan Rosario,
7624 Melody Dr.
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff Counsel Pro Per

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

Franciscus Dylan Rosario,	**Case No.: CGC-21-594102**
PLAINTIFF,	**Dept.: 504**
v.	**Judge: Garett Wong**
Subhi Abdelhalim;	
Does No.1-No.50;	**PLAINTIFF'S PROPOSED JURY INSTRUCTIONS**
SonomaLiquor (et al.)	
DEFENSE	
	Complaint Filed: July 27, 2021
	Trial Date: APRIL 1ST, 2025

TO THE HONORABLE SUPERIOR COURT, TO ALL PARTIES AND TO THEIR ATTORNEYS OF RECORD:

RE: Submission of Plaintiff's Proposed Jury Instructions

To the Court and All Interested Parties:

Please find enclosed Plaintiff's Proposed Jury Instructions for use at trial in the above-captioned matter, submitted pursuant to California Rules of Court, Rule 2.1055, and in accordance with 2025 Civil CACI standards.

The attached jury instructions include standard California Civil Jury Instructions (CACI) as well as Plaintiff's Special Jury Instructions tailored to address relevant evidentiary matters, Plaintiff's self-representation, limitations on expert access, and fairness in the evaluation of lay testimony and demonstrative exhibits.

Plaintiff respectfully requests the Court's consideration and inclusion of these instructions during jury deliberations.

Respectfully submitted,

Dated: March 31, 2025
Signed By :
DIGITAL SIGNATURE
of Franciscus Dylan Rosario
u7934598720-3459745-454

Franciscus Dylan Rosario
Plaintiff, in Pro Per
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Plaintiff Counsel Pro Per

SUPERIOR COURT OF CALIFORNIA

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DEFENSE	
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PLAINTIFFS PROPOSED JURY INSTRUCTIONS

Plaintiff respectfully submits the following CACI 2025 Compliant Jury Instructions for use at trial:

I. INTRODUCTORY INSTRUCTIONS

CACI 100 – Preliminary Admonitions:

- Jurors must base their verdict solely on the evidence presented.
- Jurors must remain impartial and not be influenced by sympathy, prejudice, or

public opinion.

- Jurors are prohibited from conducting independent research or investigation.

CACI 101 – Overview of Trial:

- Explanation of the trial process: opening statements, evidence presentation, witness testimony, closing arguments, deliberations, and verdict.

II. STANDARD INSTRUCTIONS ON EVIDENCE AND CREDIBILITY

CACI 107 – Evidence:

- Jurors must decide facts from evidence, witness testimony, exhibits, and stipulations.

CACI 113 – Witnesses:

- Evaluate witness credibility based on interest, memory, consistency, and reasonableness of testimony.

CACI 114 – Conflicting Testimony:

- Determine credibility when testimony conflicts by assessing consistency, plausibility, and witness demeanor.

CACI 115 – Expert Witness Testimony:

- The absence of expert testimony does not negate factual testimony or evidence. Consider expert testimony as jurors deem appropriate; as expert witnesses are paid for their opinion for the purpose of litigation.

III. NEGLIGENCE AND LIABILITY

CACI 400 – Negligence:

- Definition of negligence: failure to exercise reasonable care resulting in injury or harm.

CACI 401 – Basic Duty of Care:

- Defendant owed a duty to exercise reasonable care while operating a vehicle, es-

pecially near pedestrians.

CACI 700 – Vehicular Basic Standard of Care:

- Drivers must use reasonable care to avoid harming others on public roadways; Defendant breached this duty by failing to yield the right-of-way.

CACI 707 – Duty of Driver to Pedestrians:

- Explicit duty of drivers to yield to pedestrians within marked crosswalks.

IV. PLAINTIFF'S PROPOSED JURY INSTRUCTION

HIT-AND-RUN AND DRIVER'S DUTY TO PROVIDE ASSISTANCE

CACI No. 721 - Driver's Duty After Accident—Veh. Code, §§ 20001, 20003, 20004.

Under California law, a driver involved in an accident resulting in injury to another person is required to comply immediately with specific legal duties at the scene of the collision. These duties include the following:

1. Stop Immediately:

   The driver must stop at the scene of the accident and remain there until having fulfilled the obligations imposed by law.

2. Provide Reasonable Assistance:

   The driver must provide reasonable assistance to any injured person, including arranging or providing transportation to a hospital or medical facility if necessary or requested by the injured party.

3. Exchange Information:

   The driver is required to provide accurate personal identification, including their full name, current address, driver's license information, vehicle registration number, and insurance policy details to the injured party and authorities at the scene of the accident.

4. Report to Authorities:

   The driver must promptly and accurately report the collision to local law enforcement authorities.

In fulfilling these duties, a driver must not engage in conduct intended to evade responsibility or obstruct justice, such as:

- Fleeing the Scene:
  Leaving the scene of the accident without fulfilling the duties outlined above constitutes a violation of California law and demonstrates consciousness of responsibility for the collision.
- Attempting to Conceal the Vehicle:
  Any action taken by the driver to hide, alter, repair, or conceal the vehicle involved, with the intent to evade detection or responsibility, is unlawful and evidence of consciousness of fault.
- Offering Bribes or Payments to the Victim:
  Offering money, payments, or any form of inducement to the injured party or witnesses in order to influence their testimony, silence them, or avoid legal consequences is prohibited.
- Misrepresenting or Concealing Involvement:
  Providing false or misleading statements to insurance representatives, law enforcement, or any investigating authority about involvement in the accident constitutes misconduct and evidence of consciousness of responsibility.
- Denying Responsibility or Liability Falsely:
  Intentionally denying or falsely minimizing involvement, fault, or liability when reporting the incident to insurance companies or authorities demonstrates a deliberate attempt to evade responsibility.

Effect of Violations: If you find that the defendant driver violated any of these duties following the accident, you may consider such violations as evidence of the driver's consciousness of responsibility, fault, or liability for the collision and resulting injuries.

Your evaluation of this evidence should be weighed in determining negligence, causation, liability, and the damages claimed by Plaintiff.

V. EVIDENTIARY INSTRUCTIONS REGARDING RECORDED STATEMENTS

- CACI 208 – Statements of a Party Opponent:

You may hear evidence that Defendant made a recorded statement to a 911 operator after the collision stating, "I hit him." This statement is considered an admission by a party opponent. An admission by a party opponent is admissible evidence that you may consider in determining whether Defendant was negligent and whether this negligence was a substantial factor in causing Plaintiff's injuries. You must determine the credibility and weight of Defendant's initial admission when evaluating all the evidence presented.

- CACI 215 – Spontaneous Statements (Excited Utterances):

You may also hear evidence of statements made by Plaintiff and passer-by eye-witness of the scene, during the 911 call after the collision. Such statements, made under the stress and excitement caused by the event, are considered spontaneous statements or "excited utterances." Spontaneous statements are admissible because they are considered reliable due to the lack of time for reflection or fabrication. You may consider these statements in determining the nature and extent of the collision, fault, liability, deception by defendant, status of the plaintiff physically, origin and extent of the Plaintiff's injuries, defendants candor, and the circumstances following the incident.

- Conflicting Statements and Credibility of Witnesses:

Evidence has been presented showing that Defendant initially admitted to the 911 operator that he struck Plaintiff, but subsequently provided a different account to respond-

ing police officers, denying that he hit Plaintiff from behind. You may consider the inconsistency in Defendant's statements when determining Defendant's credibility and reliability as a witness. It is your role as jurors to weigh these conflicting statements and determine which version, if either, is truthful. You may consider factors such as the timing of the statements, Defendant's demeanor, and the circumstances under which each statement was made.

Your determination of Defendant's credibility and the weight you assign to these statements are important factors in your ultimate findings regarding liability, negligence, and causation related to Plaintiff's claims.

VI. INSTRUCTIONS ON DAMAGES

CACI 3900 – Damages (General Instruction): If you determine the Defendant was negligent, you must then decide the amount of money that will reasonably and fairly compensate Plaintiff for the harm caused by Defendant's conduct. Plaintiff must establish damages by a preponderance of the evidence, which means it is more likely true than not true that the damages claimed were caused by Defendant's negligence.

CACI 3903 – Economic Damages: Economic damages are the financial losses suffered by Plaintiff due to Defendant's negligence. These include, but are not limited to:

1. Past and future medical expenses incurred for reasonable and necessary medical care related to injuries from the collision.
2. Past lost earnings or income due to injuries.
3. Future lost earnings or income potential due to impairment from injuries.
4. Reasonable costs incurred due to loss of ability to perform household services or other economic losses directly attributable to the incident.

You must decide the amount of money sufficient to reasonably compensate Plaintiff for each category of proven economic loss.

CACI 3905 – Noneconomic Damages: Noneconomic damages compensate Plaintiff for intangible losses. These include:

1. Past and future physical pain and suffering.
2. Past and future mental suffering, emotional distress, and psychological trauma.
3. Loss of enjoyment of life and reduced quality of life caused by physical injuries and emotional trauma.
4. Physical impairment, inconvenience, and limitations in daily activities.

There is no fixed standard for calculating noneconomic damages. You must use your judgment to determine a reasonable amount based upon the evidence and circumstances presented in court.

CACI 3945 – Punitive Damages: Plaintiff is entitled to punitive damages if Plaintiff proves by clear and convincing evidence that Defendant acted with malice, oppression, or recklessness. "Clear and convincing evidence" means the evidence must leave you with a firm conviction that Defendant's actions were highly unreasonable, reckless, or intentionally harmful.

In this case, you may consider the Defendant's initial admission of hitting Plaintiff from behind during the 911 emergency call and the subsequent denial of this fact when interviewed by police. If you find that the Defendant intentionally or recklessly gave false statements about the collision to avoid accountability or hinder the investigation, you may consider this behavior as evidence of Defendant's malice, oppression, or reckless disregard for Plaintiff's rights and safety.

In deciding punitive damages, you must consider:

- The reprehensibility of Defendant's conduct.
- The relationship between the punitive damages amount and the harm suffered by Plaintiff.
- The amount necessary to punish Defendant(s) and deter similar future behavior.

The amount of punitive damages, if awarded, must be reasonable and proportionate to the gravity of Defendant's conduct.

Your verdict for punitive damages must reflect your determination that Defendant's conduct merits punishment beyond compensating Plaintiff for actual losses.

VII. JUROR CONDUCT AND DELIBERATIONS

CACI 5000 – Duties of Jurors During Deliberations:

- Jurors must deliberate fairly, remain open-minded, and reserve decision-making until deliberations.

CACI 5009 – Non-Discrimination in Deliberations:

- Decisions must not be influenced by biases or prejudices related to race, gender, religion, sexual orientation, socioeconomic status, or other protected characteristics.

VIII. PLAINTIFF'S REQUEST FOR SPECIAL JURY INSTRUCTIONS

(Civil Trial – Vehicle-Pedestrian Injury)

To be read in conjunction with standard CACI instructions including, but not limited to:

CACI Nos. 100–107 (General Duty of Jury), 204 (Spoliation), 400–406 (Negligence and Causation), 430 (Substantial Factor), 700–710 (Motor Vehicle Duties), 3920–3929 (Personal Injury Damages), 5000–5009 (Pedestrian Cases and Deliberations), and applicable insurer-related instructions (e.g., 2330–2337).

Plaintiff Evidence, Testimony, and Procedural Context:

1. Evaluation of Plaintiff's Evidence in Absence of Expert Testimony

   Due to procedural limitations imposed by the Defendant, the Plaintiff was unable to present expert medical testimony.

   Jurors may still assess Plaintiff's injuries using:

   - Medical records received into evidence,
   - Testimony from Plaintiff and other lay witnesses,
   - Their own reason, experience, and common sense.

   CACI 5003 – Use of Common Sense; Evaluation of Lay Testimony

2. Evaluation of a Self-Represented Plaintiff

   A person has the right to represent themselves. You must not consider the Plaintiff's lack of legal training or courtroom formality against them.

   The case should be evaluated solely on the merits, evidence, and law.

   Judicial fairness principles; See also CACI 107 – Credibility of Witnesses

3. Consideration of Plaintiff's Medical Condition

   If you find that Plaintiff suffers from neurological injuries affecting speech, comprehension, or ability to present the case, you must consider this with understanding and fairness.

   Do not discredit the Plaintiff's testimony solely due to communication difficulties.

   CACI 3928 – Effect of Preexisting Condition or Disability; CACI 5003 – Common Sense Assessment

4. Exclusion of Evidence and Procedural Limitations

Certain evidence favorable to Plaintiff was excluded due to procedural or court rulings.

While you must evaluate only admitted evidence, you may consider whether the exclusion limited Plaintiff's ability to prove key issues.

CACI 5003 – Consider All Evidence Presented; Evid. Code § 780

5. Recorded Admissions and Changed Testimony

If the Defendant made statements to 911 operators admitting fault and later denied those admissions to police, you may consider this inconsistency when evaluating the Defendant's credibility.

CACI 107 – Credibility of Witnesses

6. Plaintiff's Emotional and Financial Damages

If Defendant is found liable, you may consider:

- Emotional distress,
- Long-term suffering,
- Lost income and professional standing,
- Harm from self-representation and prior counsel.

CACI 3905A – Past Economic Loss, 3905B – Future Economic Loss, 3905C – Non-Economic Loss

7. Insurance Company Conduct

If insurers failed to investigate or wrongfully denied Plaintiff's claim, and this contributed to ongoing harm, you may consider that in assessing damages.

CACI 2331 – Breach of Duty to Investigate Claim; Insurance Code § 790.03(h)

8. Deprivation of Medical Testimony and Records

If the Defendant obstructed or caused delays in obtaining treating physician depositions or records, and this disadvantaged Plaintiff, you may consider the impact this had on Plaintiff's case.

CACI 204 – Suppression of Evidence

9. Reliability of Official Records

You may consider police reports, hospital records, and 911 recordings as reliable unless there is credible reason to doubt their accuracy.

Conflicts between these and witness accounts may impact your credibility findings.

CACI 5003 – Use of Common Sense; Evid. Code § 1280

10. Community Standards and Duty of Care

Drivers owe a duty of care to pedestrians.

You may consider whether Defendant's actions fell below that standard, especially in busy pedestrian zones.

CACI 400 – Basic Duty of Care, 401 – Breach of Duty, 700 – Basic Standard of Care for Drivers, 710 – Duty to Pedestrians

11. Consideration of Punitive Damages

If Defendant acted with oppression, fraud, or malice—such as lying, hiding evidence, or showing reckless disregard—you may consider whether punitive damages are warranted.

CACI 3940 – Punitive Damages (Individual), 3942 – Reckless Indifference

12. Empowerment of the Jury

You are the sole judges of the facts.

You are empowered to ensure fairness and justice by applying the law to the facts

as you find them.

CACI 100 – Duty of the Jury, 104 – Duties of the Judge and Jury

13. Final Instruction

Your verdict must be based solely on the facts and law.

Avoid sympathy, bias, or prejudice.

Rely on fairness, common sense, and the court's instructions.

CACI 5000 – Duty to Decide Case Based on Evidence; CACI 5006 – No Bias

14. Assessment of Witness Credibility

Inconsistencies in witness statements, including those of the Defendant, may affect credibility.

You may consider demeanor, motivation, and whether testimony is supported by other evidence.

CACI 107 – Credibility of Witnesses

15. Inference from Suppression or Destruction of Evidence

If a party destroyed or withheld evidence, you may infer it would have been unfavorable to that party.

This includes failure to provide 911 recordings, video, or names of witnesses.

CACI 204 – Willful Suppression of Evidence

16. Consideration of Systemic Obstacles and Procedural Inequity

Plaintiff may have faced unequal access to resources, denied discovery, or other procedural disadvantages.

Consider whether such limitations affected Plaintiff's ability to meet the burden of proof.

CACI 5003; Evid. Code § 780 – Factors Affecting Credibility

17. Role of Insurance Companies in Delayed Recovery

If the insurer failed to investigate in a timely manner or denied the claim wrongfully, contributing to ongoing hardship, this may be relevant to your damages determination.

CACI 2331 – Bad Faith; Insurance Code § 790.03(h)

18. Psychological and Emotional Impact of Self-Advocacy

You may consider added emotional stress caused by Plaintiff's need to self-represent under adverse conditions as part of non-economic damages.

CACI 3905C – Emotional Distress; CACI 3920 – Pain and Suffering

19. Denial of Criminal Complaint and Institutional Indifference

You may consider whether law enforcement ignored Plaintiff's criminal complaint or evidence, and whether that inaction caused emotional harm or delayed civil redress.

20. Community Safety and Defendant's Conduct

Consider whether the Defendant's driving behavior showed disregard for pedestrian safety in a high-risk zone.

CACI 401 – Breach of Duty; 710 – Pedestrian Safety

21. Role of the Jury as Voice of the Community

As jurors, you safeguard community standards of care and justice.

Your verdict reflects the values of fairness, accountability, and safety.

CACI 100 – Role of the Jury

22. Summary of Duty to Evaluate Fairly

You must evaluate this case without bias.

Focus on:

- The admitted evidence,
- The credibility of testimony,
- The Plaintiff's injuries, and
- The impact of any procedural barriers.

Do not let communication style or courtroom polish affect your decision.

CACI 5003 – Use of Common Sense; CACI 5009 – Non-Discrimination in Deliberations

CACI 5009 – Non-Discrimination in Deliberations:

Decisions must not be influenced by biases or prejudices related to race, gender, religion, sexual orientation, socioeconomic status, or other protected characteristics.

Corporate Accountability, Evidence Evaluation, and Fairness Principles

To be read in conjunction with standard and supplemental CACI instructions, including Nos. 100–107, 204, 2330–2337, 3905–3942, 400–406, 430, 5000–5009, 700–710.

23. Independent Evaluation of Evidence

You are instructed to evaluate all evidence independently.

Use your own judgment, reason, and common sense.

If you find bias, omissions, or inconsistencies in official records or witness testimony, you may consider whether the information is reliable.

CACI 5003 – Use of Common Sense; CACI 107 – Credibility of Witnesses

24. Duty of Good Faith by Insurance Companies

Insurance companies have a legal duty to act in good faith.

If you find that an insurance company intentionally avoided its responsibilities or wrongfully denied Plaintiff's claim, you may consider this conduct in evaluating punitive damages.

CACI 2331 – Breach of the Duty of Good Faith and Fair Dealing; Insurance Code § 790.03(h); CACI 3940–3942 – Punitive Damages

25. Neutral Assessment of Communication Style

Jurors must evaluate all testimony based on substance, not style.

Do not let personal feelings about how a witness speaks, presents themselves, or communicates affect your judgment of credibility.

CACI 5003 – Use of Common Sense; CACI 5006 – No Bias; CACI 5009 – Non-Discrimination in Deliberations

26. Evaluation of Eyewitness Testimony

When assessing eyewitness testimony, you may consider:

- Clarity of the account,
- Consistency over time,
- Whether it is corroborated by audio, video, or physical evidence.

You may also weigh whether the witness had a clear opportunity to observe the event.

CACI 107 – Credibility of Witnesses; CACI 5003

27. Consideration of Punitive Damages

If you find that Defendant's actions demonstrated malice, oppression, fraud, or reckless disregard for Plaintiff's safety and rights, you may award punitive damages to punish and deter such conduct.

CACI 3940 – Punitive Damages (Individual Defendants); CACI 3942 – Reckless Indifference to Rights of Others

28. Affirmation of Community Duty of Care

Drivers, business owners, and insurance companies owe duties to the public.

Their actions must reflect the safety, fairness, and responsibility expected by the community.

You may consider whether Defendant or related parties violated that duty and caused harm.

CACI 400 – Duty of Care; CACI 401 – Breach of Duty; CACI 700–710 – Duties of Drivers and Owners

29. Scrutiny of Defense Tactics and Distractions

You may consider whether the Defendant attempted to distract from direct evidence by using irrelevant arguments or procedural tactics.

Your verdict must be based solely on the admitted trial evidence, not distractions or unsupported claims.

Negligent or reckless conduct must be held accountable under the law.

CACI 100 – Duty of the Jury; CACI 204 – Suppression or Fabrication of Evidence

PLAINTIFF'S REQUEST FOR SPECIAL JURY INSTRUCTIONS (Part III)

Lay Witness Testimony and Use of Demonstrative Exhibits

To be read in conjunction with CACI Nos. 107, 219, 220, 221, 222, 223, 5003, 5006, and applicable provisions of the Evidence Code, including §§ 210, 800–803.

30. Evaluation of Lay Witness Testimony

Testimony from non-expert (lay) witnesses may be considered in evaluating the

facts of the case.

A lay witness may give opinions or describe events based on their personal observations, such as:

- Describing what they saw or heard,
- Expressing impressions of physical condition or pain,
- Offering conclusions based on common sense or everyday experiences.

You may give weight to lay witness testimony if it is credible, consistent, and based on actual perception.

Lay testimony may also assist in understanding Plaintiff's injuries, behavior, or changes over time.

CACI 107 – Credibility of Witnesses; Evidence Code § 800 – Opinion Testimony by Lay Witnesses

31. Use of Demonstrative Exhibits to Explain or Clarify Testimony

Demonstrative exhibits (such as diagrams, timelines, photos, models, or visual aids) may be used during trial to help explain testimony or clarify events.

These exhibits are not themselves evidence unless admitted, but they may help you understand:

- The sequence of events,
- The relationship between people or objects,
- Medical or physical impacts,
- Complex information reduced to visual, simple form.

You may consider these aids to apply reason and common sense to the evidence.

If the demonstratives illustrate something consistent with other testimony or documents, you may rely on them to help evaluate credibility and damages.

CACI 5003 – Use of Common Sense; Evidence Code §§ 210, 350–352

32. Weight of Common-Sense Explanations

If a party or witness presents an explanation that is reasonable, consistent with the evidence, and grounded in ordinary experience, you may give that explanation greater weight.

You are not required to accept a complicated or technical explanation if a simpler, more obvious one is supported by the evidence and consistent with how people normally perceive and react.

You may use your life experience and shared logic in deciding what happened and in determining responsibility and damages.

CACI 5003 – Use of Common Sense; Evidence Code § 801 – Expert and Lay Analysis; CACI 221 – Conflicts in Testimony

33. Reinforcement of Credibility Through Consistency and Visual Confirmation

You may consider whether testimony accounts are:

- Consistent with demonstrative exhibits or physical evidence,
- Corroborated by visual aids shown in court,
- Supported by timeline reconstructions, scene diagrams, or photos.

If demonstrative exhibits or simple reconstructions make a witness's account more understandable and consistent, you may find that witness to be more credible.

CACI 107 – Credibility; CACI 220 – Believability of Witnesses; Evidence Code § 800

LAY APPLICATION OF BASIC MATH AND PHYSICS PRINCIPLES BY PLAINTIFF

To be read in conjunction with:

CACI Nos. 107, 219–223 (Lay Testimony), 5003 (Use of Common Sense), and Evidence Code §§ 800–803 (Opinion Testimony by Lay Witnesses).

34. Use of Basic Math and Physics Principles in Testimony

A party may offer descriptions, calculations, or explanations using basic math and physical reasoning, even without being qualified as an expert witness.

You may consider the Plaintiff's use of everyday knowledge, including high-school level math and physics—such as:

- Estimating speed, time, and distance,
- Describing impact force or momentum,
- Relating injury mechanisms to visible damage or positioning.

If the Plaintiff's explanations are based on reasonable assumptions, personal observation, and common knowledge , some of which may include high-school level understanding of physics and mathematics principles, you may give that testimony appropriate weight.

You are not required to disregard such testimony simply because it is not presented by a certified expert in biomechanics or accident reconstruction.

CACI 5003 – Use of Common Sense -

Evidence Code § 800 – Opinion Testimony by Lay Witnesses

CACI 219 – Opinion Testimony of Lay Witnesses

35. No Punishment for Lack of Expert Resources

If Plaintiff does not have access to an accident reconstructionist or biomechanical expert due to financial or procedural limitations, you may still evaluate the facts based on:

- Plaintiff's observations,
- Demonstrative evidence,
- Logical reasoning applied to the scene or injuries,
- And your own experience and judgment as jurors.

Justice does not require a party to hire experts to prove what is already apparent through logic and observation.

CACI 5003 – Use of Common Sense; CACI 5006 – No Bias; Judicial Fairness and

Access Principles

36. Visual Aids and Reasoning Support Credibility

If Plaintiff uses visual aids or diagrams to explain concepts like velocity, trajectory, or force of impact, and those tools help clarify testimony in a way consistent with the other evidence, you may find that testimony credible.

The law allows people to explain what happened in their own words and using their own understanding of basic scientific reasoning.

Evidence Code §§ 210, 800; CACI 107 – Credibility of Witnesses; CACI 223 – Meaning of Words Used in Testimony

These instructions guide deliberations ensuring a verdict based solely on evidence, applied fairly and impartially, consistent with CACI Superior Court standards.

Respectfully submitted,

Dated: March 31, 2025
Franciscus Dylan Rosario
Plaintiff, in Pro Per
E: soltrinox@gmail.com
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Plaintiff Counsel Pro Per

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

Franciscus Dylan Rosario,	**Case No.: CGC-21-594102**
PLAINTIFF,	**Dept.: 504**
v.	**Judge: Garett Wong**
Subhi Abdelhalim;	
Does No.1-No.50;	**PLAINTIFF'S PROPOSED JURY INSTRUCTIONS**
SonomaLiquor (et al.)	
DEFENSE	
	Complaint Filed: July 27, 2021
	Trial Date: APRIL 1ST, 2025

DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO

I, Franciscus Dylan Rosario, declare as follows:

1. I am the Plaintiff in this matter and have personal knowledge of the facts stated herein.
2. I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on March 31, 2025, in Rohnert Park, California.

Dated: March 31, 2025

Signed By :

DIGITAL SIGNATURE

of Franciscus Dylan Rosario

u7934598720-3459745-454

Franciscus Dylan Rosario
Plaintiff, in Pro Per
E: soltrinox@gmail.com
P: 650.488.7510

Attachment B

Kimberly M. Septien

From:	Dylan Rosario <soltrinox@gmail.com>
Sent:	Saturday, April 19, 2025 9:51 PM
To:	Alberto Reyna; karim@lakunacollective.com; Priya Navaratnasingham
Cc:	emercia@psalaw.net; rmcgregor@psalaw.net; rphillips@psalaw.net; Department 504; Department 206; USACAC.CV-CivilRights@usdoj.gov; Dylan Rosario
Subject:	Re: Rosario v. Abdelhalim - Video Timestamps / Verdict Form

⚠ **WARNING: This email was generated from an external source. You should only open files from a trustworthy source.**

ALBERTO HERE IS MY VERSION THAT WE ARE PREPARED TO CIRCULATE::::::
I will send a new doc formatted for the court.

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

CASE TITLE: Franciscus Dylan Rosario v. Subhi Abdelhalim, et al.
CASE NO.: CGC-21-594102

SPECIAL VERDICT FORM – BIFURCATED PHASE I
LIABILITY, CAUSATION, CREDIBILITY, AND PUNITIVE DAMAGES TRIGGERS

We, the jury, answer the following questions:

A. NEGLIGENCE AND CAUSATION (CACI 400, 430)

1. Did Defendant SUBHI ABDELHALIM negligently operate a vehicle resulting in a collision with Plaintiff FRANCISCUS DYLAN ROSARIO? (CACI 400)

   ☐ Yes ☐ No

(If "No," stop here, sign, and date the form. If "Yes," proceed to Question 2.)

2. Was Defendant's negligence a substantial factor in causing harm to Plaintiff? (CACI 430)

   ☐ Yes ☐ No

B. DEFENDANT'S STATEMENTS AND CREDIBILITY (CACI 107, 212, 213)

3. Did Defendant SUBHI ABDELHALIM make a recorded 911 call admitting he struck Plaintiff FRANCISCUS DYLAN ROSARIO with his vehicle? (CACI 212)

   ☐ Yes ☐ No

4. Was the statement made by Defendant in the 911 call voluntary and truthful when it was made? (CACI 107, 212)

   ☐ Yes ☐ No

(If "No," proceed to Question 5; if "Yes," proceed to Question 6.)

5. Did Defendant later provide credible evidence that his 911 statement was made under duress, threat, or coercion by Plaintiff? (CACI 107, 213)

   ☐ Yes ☐ No

(If "Yes," you may find the later denial more credible; if "No," you should consider the original 911 confession truthful.)

6. Did Defendant provide false or misleading information to law enforcement officers after the collision, including denial of involvement or failing to disclose he was the driver? (CACI 107)

   ☐ Yes ☐ No

C. HIT-AND-RUN AND POST-INCIDENT CONDUCT (CACI 203, 434)

7. Did Defendant flee the scene of the collision without rendering reasonable assistance to Plaintiff or without waiting for emergency personnel to arrive? (CACI 203)

   ☐ Yes ☐ No

8. Did Defendant intentionally conceal or suppress material facts about his involvement in the incident? (CACI 203)

   ☐ Yes ☐ No

D. MALICE, FRAUD, OR OPPRESSION – PUNITIVE DAMAGES TRIGGERS (CACI 3940, 3941)

9. Do you find by clear and convincing evidence that Defendant acted with:

   a. Malice (conscious disregard for the safety of others)? (CACI 3940) ☐ Yes ☐ No

   b. Oppression (despicable conduct causing hardship to a vulnerable person)? (CACI 3941) ☐ Yes ☐ No

   c. Fraud (intentional deception or concealment of material facts)? (CACI 3940) ☐ Yes ☐ No

(If you answered "Yes" to any part of Question 9, the Court may instruct you to consider punitive damages in the next phase.)

E. SIGNATURE

Presiding Juror Signature: _____ Date: _____